

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #2	CCRB Case #: 201501229	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/12/2015 11:50 AM	Location of Incident: § 87(2)(b)	Precinct: 63	18 Mo. SOL 8/12/2016	EO SOL 8/12/2016	
Date/Time CV Reported Thu, 02/19/2015 1:45 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 02/19/2015 1:45 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jordan Lomba	09300	950766	063 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Keith Budhram	20625	951564	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jordan Lomba	Discourtesy: PO Jordan Lomba spoke rudely to § 87(2)(b)	§ 87(2)(b)
B.POM Jordan Lomba	Abuse: PO Jordan Lomba issued summonses to § 87(2)(b)	§ 87(2)(b)

Case Summary

On February 12, 2015, at 11:50 a.m., § 87(2)(b) picked up his cousin, § 87(2)(b) and her boyfriend, § 87(2)(b) at the Kings Plaza Shopping Center in Brooklyn. § 87(2)(b) was driving a silver passenger van which he uses as a livery vehicle. § 87(2)(b) was picking up his cousin as a personal favor and not in his capacity as a livery driver.

§ 87(2)(b) was pulled over by PO Jordan Lomba and PO Keith Budhram of the 63rd Precinct after driving one block with his passengers. § 87(2)(b) handed his license to PO Lomba who returned with four summonses after fifteen minutes. § 87(2)(b) informed PO Lomba that he was not doing his job correctly and PO Lomba said, "Yeah right, you dumb asshole," (**Allegation A**). § 87(2)(b) responded by displaying his middle finger to PO Lomba as PO Lomba was driving away. In response, PO Lomba stopped his car, approached § 87(2)(b) demanded his license a second time and wrote § 87(2)(b) nine additional summonses for violations relating to his vehicle (**Allegation B**). § 87(2)(b) was permitted to leave after these summonses were issued (encl. 4A-5F).

Mediation, Civil and Criminal Histories

§ 87(2)(b) declined to mediate this case, § 87(2)(b) § 87(2)(b) stated that he did not intend to file a lawsuit. Confirmation from the New York City Office of the Comptroller will be forwarded upon receipt (encl. 11A). § 87(2)(b) [§ 87(2)(b)] [§ 87(2)(b)]

Civilian and Officer CCRB Histories

- PO Jordan Lomba has been a member of the NYPD for three years, has had four previous CCRB allegations involving two cases and no substantiated allegations. § 87(2)(g) (encl. 2A).
- § 87(2)(b) has filed one previous complaint with the CCRB (encl. 3A).
 - § 87(2)(b)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Explanation of Subject Officer Identification

PO Lomba acknowledged interacting with § 87(2)(b) on the incident date.

Allegation A – Discourtesy: PO Jordan Lomba spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Lomba said, "Yeah right, you dumb asshole," after § 87(2)(b) criticized him for issuing him summonses. § 87(2)(b) confirmed that PO Lomba called § 87(2)(b) a "dumb asshole," (encl. 6A). § 87(2)(b) did not cooperate with the investigation and did not provide a statement about the incident. PO Lomba denied making this remark or using any profanity (encl. 7K-L). PO Budhram denied hearing PO Lomba make this remark or using any profanity (encl. 8C-D). § 87(2)(g)

Allegation B – Abuse of Authority: PO Jordan Lomba issued summonses to § 87(2)(b)

It is undisputed that PO Lomba issued nine summonses to § 87(2)(b) as a direct result of § 87(2)(b)'s disrespectful gesture and remark towards him. § 87(2)(b) stated that he displayed his middle finger to PO Lomba after he was issued four summonses and that PO Lomba promptly returned and issued nine additional summonses. PO Lomba confirmed that he chose to issue additional summonses to § 87(2)(b) as result of the gesture. PO Lomba further stated that § 87(2)(b) said, "Fuck you." PO Budhram stated the additional nine summonses were issued after § 87(2)(b) made the gesture but he could not speak for PO Lomba's reasons for issuing the summonses at that time.

PO Lomba stated that he observed § 87(2)(b) pick up a street hail in a vehicle that did not have proper TLC certification. PO Lomba further stated he observed a plate cover obstructing § 87(2)(b)'s rear license plate and dark tints in the van's windows. PO Lomba issued summonses to § 87(2)(b) for picking up a street hail, blocking traffic while picking up the hail, operating an unlicensed TLC vehicle and operating without a TLC license. PO Lomba did not issue any summonses relating to the vehicle's safety-related violations at this time.

PO Lomba was in his vehicle and driving away from the incident location when § 87(2)(b) made the offending gesture and remark. § 87(2)(b)'s vehicle was not moving at this time. PO Lomba immediately initiated a second stop as a result of the discourteous gesture and proceeded to issue additional summonses based off of an inspection of the vehicle's exterior. PO Lomba proceeded to issue § 87(2)(b) summonses for an unauthorized radio, lack of insurance for the vehicle, an obstructed rear view mirror, driver side window tints, passenger side window tints, windshield tints, obstructive license plate covers, TLC advertisements and a defective brake light. § 87(2)(b) contested the latter three summonses.

A summons is improper when issued with retaliatory motivation in response to a personal offense or slight. Police Department v. Navan and McCartney OATH Index Nos. 668-69/91 (encl. 1I). It is evidence of bad faith when police action against an individual is prompted not by evidence of an offense but by an officer's annoyance with an individual's remarks after the incident. Police Department v. Queally and Nicastro OATH Index Nos. 1787-88/97 (1998) (encl. 1J-1Y). When an officer issues a summons based on a personal offense, the summons is improper. Police Department v. Cerny, OATH Index No. 1682/01 (2001) (encl. 1Z-AL).

§ 87(2)(g)

§ 87(2)(g)

Pod: 2

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date